

26NWCV00668 26NWCV00668

County: los-angeles

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Case Number: 26NWCV00668 Hearing Date: September 18, 2026 Dept: P

AYZ INVESTMENT LLC

v. RAYMOND R. & DONNIS H. HOLBROOK TRUST, ET AL.

CASE NO.: 26NWCV00668

HEARING: 09/18/2026 @ 9:30 AM

#12

TENTATIVE ORDER

I.

Plaintiff AYZ Investment LLC's motion to compel nonparty Southern Edison Company's compliance with its deposition subpoena is GRANTED.

II.

Plaintiff's request for monetary sanctions is DENIED.

Moving party to give notice.

Plaintiff AYZ Investment LLC (Plaintiff) moves to compel nonparty Southern Edison Company (SCE) to comply with its deposition subpoena for production of business records.

Background

On February 24, 2026, Plaintiff filed this breach of contract action against Defendants Raymond R. & Donnis H. Holbrook Trust (Trust or Seller); Dana Robert Holbrook, individually and as Trustee; Donald La; LH Enterprises, Inc.; and Does 1–50 regarding the commercial real property located at 12631 12637 Los Nietos Road, Santa Fe Springs, California (Property). The complaint alleges that Plaintiff and Trust entered into a written Purchase Sale Agreement (PSA) for the sale of the Property under which Trust agreed to maintain the Property in the same condition through closing and to disclose any material changes in condition. (Complaint, ¶¶ 14-15.) The complaint alleges that Trust concealed damage and prevented Plaintiff from inspecting the Property after the Property experienced repeated criminal activity during escrow. (Complaint, ¶¶ 17-25.)

The complaint asserts nine causes of action: (1) Breach of Contract; (2) Breach of Express Warranty; (3) Breach of Implied Covenant of Good Faith and Fair Dealing; (4) Fraud – Concealment; (5) Intentional Misrepresentation; (6) Negligent Misrepresentation; (7) Negligence; (8) Violation of Civil Code § 2079; and (9) Declaratory Relief.

This is a continuation. On August 21, 2026, the Court continued the hearing on this motion after finding the service of the deposition subpoena to be insufficient. The Court permitted Plaintiff to file a supplemental declaration regarding proof of service.

On September 4, 2026, SCE filed a limited response to this motion.

Legal Standard

A party can obtain discovery from a nonparty via a deposition subpoena. (Code Civ. Proc., § 2020.010, subd. (b); *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127.)

Code of Civil Procedure section 1987.1, subdivision (a) provides:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion

after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

Discussion

Plaintiff moves to compel SCE's compliance with its deposition subpoena.

On September 4, 2026, SCE filed a declaration stating that it does not oppose compliance with the deposition subpoena. Counsel for SCE explains "[o]n August 27, 2026, I became aware of a continued hearing on a Motion to Compel Compliance with Deposition Subpoena for Production of Business Records directed to SCE by Plaintiff AYZ Investments, LLC ("Motion"). Upon learning of the Motion and hearing, I immediately began investigating the circumstances surrounding the subpoena and SCE's nonresponse to the subpoena, and I located and reviewed Plaintiff's moving papers." (Hickerson Decl., ¶ 2.)

Plaintiff shows that the deposition subpoena required production of responsive records by April 30, 2026 and that SCE neither produced any documents nor served objections, requested extensions, or made any communications regarding the deposition subpoena. (Fox Decl., ¶¶ 11-12; Exh. A.) Plaintiff also shows that it made informal attempts to compel compliance but SCE had not responded. (Fox Decl., ¶¶ 13-14, 18.)

Plaintiff argues that the subpoena seeks service activation records; service interruption records; meter removal and installation records; electrical service applications; work orders; field inspection reports; communications with the City of Santa Fe Springs; service release documentation; records reflecting damage to electrical infrastructure; and records identifying the date electrical service was restored. (Fox Decl., Exh. A.) Plaintiff states that "[t]he records sought are directly relevant to Plaintiff's claims because they concern the timing and condition of electrical service to the property, the work required before service could be restored, and the date upon which electrical service was restored following the theft of the property's electrical infrastructure." (Fox Decl., ¶ 19.) Plaintiff also attests that the records are uniquely within SCE's possession and cannot be

obtained from another source. (Fox Decl., ¶ 20.)

In SCE's limited response, SCE explains that it attempted to meet and confer with Plaintiff upon learning about this subpoena but has not received any responses. (Hickerson Decl., ¶ 7.)

Based on the foregoing, the Courts finds this motion is reasonably made and seeks records that might reasonably lead to admissible evidence. Moreover, SCE does not oppose this motion and is "committed to complying with the subpoena and producing responsive nonprivileged records." (Hickerson Decl., ¶ 10.) The Court therefore finds an order compelling compliance with the deposition subpoena warranted.

Accordingly, Plaintiff's motion to compel compliance with its deposition subpoena is GRANTED.

Nonparty Southern Edison Company is ORDERED to comply with the deposition subpoena within 30 days of this Order.

Sanctions

Plaintiff requests monetary sanctions against SCE based on its failure to comply with the deposition subpoena without justification.

"[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

The Court declines to award monetary sanctions against SCE as the Court does not find that the motion was opposed in bad faith or without substantial justification. Plaintiff did not respond to SCE's communications after learning about this motion. (Hickerson Decl., ¶ 7.) Moreover, Plaintiff does not supply a declaration attesting to the fees incurred in bringing this motion or their reasonableness.